CHAPTER 6

# Demystifying Registration of Births and Deaths System in Goa

## A Perspective

Registration system was first introduced in India mainly as an aid to public health administration for locating and identifying diseases of public health importance and introducing remedial measures to control mortality. Registration acquired greater importance for yielding vital statistics for planning, administration and launch of other welfare measures with the passage of time and as the population growth assumed considerable significance. The most important measure was the enactment of a Central Law called "Registration of Births and Deaths (RBD) Act, 1969 inorder to develop a unified and efficient system.

**Historical background:** The history of civil registration in India dates back to the middle of the nineteenth century. It started with the registration of deaths with a view to introducing sanitary reforms for control of pestilence and disease by the Sanitary Commissioner in the year 1867 and not so much for studying population trends. The important landmark in the development of vital statistics was the stress laid down by the Indian Famine Commission in the year 1880 on the importance of Vital Statistics, which pointed out that registration of births and deaths should be made legally obligatory in villages and towns.

**Registration history in Goa:** Before the liberation of Goa from Portuguese rule an "Uniform Civil Code" was observed for registration of vital events. The compulsory birth registration in Goa was started since 1914 with publication of Civil Registry Code. A part of Civil Code were implemented by Department of Archives upto 1936, since 1937 the authorization was passed on to Civil Registrar-cum-Sub Registrar. The collection and elaboration of vital statistics was entrusted to statistical services in the year 1948. This system was subsequently repelled by the advent of Registration of Births and Deaths Act, 1969 with effect from 1st January 1971.

### 1 Importance and Usefulness of Registration of Births & Deaths:

Registration of Births and Deaths is an important source for demographic data, socioeconomic development and population control in a developing country.

## 2 Births and Deaths records are used as

- *Legal documents* to prove identity and civil status, age, nationality, dependency status of a person, enrollment in school, attending interviews for job, marriage registration, settlement of inheritance, insurance claims, social security benefits etc.
- *Source of vital statistics*: i ) Data provides population changes from time to time, composition by broad age groups, sex, marital status, fertility, mortality, etc., (ii) Population growth, fertility and mortality serves as an initial point for population projection and (iii) Adequate evaluation of health programme, family planning, immunization, maternal and reproductive health.

PROVISIONS OF R.B.D. ACT, 1969

| | |
|---|---|
| **Section 1** | Enables enforcement of Act in different parts. |
| **Section 2** | Describes definitions |
| **Section 3,4,5,6,7** | Establish a statutory authority at different levels for registration |
| **Section 8-9** | Fix responsibility on different categories of persons required to register events |
| **Section 10** | Makes certain persons responsible to notify the event |
| **Section 11, 12, 15** | Lay down registration procedure |
| **Section 13** | Permits delayed registration |
| **Section 14** | Allows registration of name of child at a later date |
| **Section 16-17** | Provide maintenance of records for issuance of certificates/extracts |
| **Section 18** | Authorities inspection of registration offices |
| **Section 19** | Prescribes the regular flow of returns from the Registrar |
| **Section 20** | Sanctions registration of births and deaths of Indian citizens abroad |
| **Section 21** | Empowers a Registrar to obtain information regarding birth or death from a local resident |
| **Section 22** | Confers powers on the Central Government to give directions to the State Government |
| **Section 23, 24, 25** | Impose penalties for the various offences |
| **Section 26, 27, 28** | Admit Registrars as public servants and provide protection |
| **Section 29** | Saves the Birth, Death and Marriages Registration Act, 1886 |
| **Section 31** | Repeals the earlier laws on registration |
| **Section 30, 32** | Empowers the State Governments to make Rules and remove difficulties with the approval of the Central Government. |

## Registration functionaries in Goa

Chief Registrar of Births and Deaths
(Director, Directorate of Planning, Statistics and Evaluation, Govt. of Goa)



Additional Chief Registrar of Births and Deaths
( Jt. Director, Directorate of Planning, Statistics and Evaluation )



District Registrar of Births and Deaths
(Addl. Collector of North /South Goa)



Additional District Registrar of Births and Deaths
(Block Development Officers of all Talukas)



Registrar of Births and Deaths

- Panchayat Secretaries of all Village Panchayats ( Rural areas ) ( 189)
- Chief Officers of Municipal Councils ( Urban area ) (14 )
- Medical Superintendent, Goa Medical College, Bambolim (1)

Besides , (a) Civil Registrar Cum Sub Registrar (11 talukas) for period upto 31.12.1970 and (b) Civil Registrar Cum Sub Registrar (HQ), State Registrar for correction/ verification and issue of Births and Deaths Certificate in Form 5 & 6 as well as implementation of Section 15 of RBD Act, for events registered upto 31.12.1970.



Sub Registrar

( Appointed by Registrar irrespective of designation i.e. L.D.C. & above by the Registrar with prior permission of Chief Registrar of Births & Deaths in relation to specified areas within the jurisdiction of Registrar, in case such jurisdiction is very vast and cannot be controlled by single Registrar)

## Registration Forms

| Form no. | Particulars | Section/Rule | Action |
|---|---|---|---|
| 1. Birth Report | i) legal information<br>ii) Statistical information | Section 8/9<br>Rule 5(1)/5(2) | Information is to be filled by the applicant or if given orally entered by the Registrar in the appropriate reporting form and signed or put thumb impression by the applicant. Legal part is filed in the respective register and statistical part is to be sent to Office of Chief Registrar of Births and Deaths for compilation of data for Annual report. |
| 2. Death Report | -do- | -do- | |
| 3. Still Birth report | -do- | -do- | |
| 4. Medical certificate of cause of death | Issued on hospital in-patient death | Sec.10(3)<br>Rule 7 | In the event of death of any person, who during his last illness was attended by a Medical practitioner ( Hospital in-patient or otherwise). The Medical practitioner after the death issues certificate in form 4 or 4A as applicable without charging any fee. |
| 4A -do- | Non-institutional patient death | -do- | |
| 5. Birth Certificate | Issued under Section 12 | Rule 8 | Extract from the register is given free of charge to the informant as soon as completion of registration. |
| | Section 17 | Rule 13 | For cause of a search made in the register for any entry and issue of extract on payment of fees. |
| 6. Death Certificate | Section 12 | Rule 8 | Same as issue of Birth certificate under section 12 as stated above. |
| | Section 17 | Rule 13 | Same as issue of Birth certificate under section 17 as stated above. |

| | | | |
|---|---|---|---|
| 7. Birth Register | Availability: Registers are maintained at the registration unit by the Registrar which are printed and supplied by C.R.B.D. | Sect.16<br>Rule 12 | Since 2001 each legal part of the Birth report in form 1 submitted by informant forms a separate record of birth register. |
| 8. Death Register | -do- | -do- | Since 2001 each legal part of the Death report in form no. 2 submitted by informant forms a separate record of Death register. |
| 9. Still Birth Register | -do- | -do- | Each legal part of the Still Birth Report in form no. 3 submitted by informant forms a separate record of still birth register. |
| 10. Non-availability Certificate (NAC) | Issued by the Registrar to the applicant for registering birth/death at delayed stage, after causing a search in the relevant register of the relevant years and not found registered. | Sect.17<br>Rule 13 | Non-availability certificate is produced to Addl. Dist. Reg. concerned for registering the event between 31st day and up to 1 year for issuance of permission, beyond one year of occurrence of event the NAC is to be produced to Executive Magistrate concerned for issue of order to register the event. |
| 11. Summary Monthly report of births | All the Registrars to submit to Chief Registrar returns regarding entries of birth ( statistical part) every month alongwith the summary. | Sect. 19(1) | The statistical part received by the office of the CRBD are scrutinized, coded and processed for preparation of Annual Report. |
| 12. Summary monthly report of death | Same as above in respect of death forms. | -do- | -do- |
| 13. Summary monthly report of Still birth | Same as above in respect of Still birth form. | -do- | -do- |

## Fees prescribed for registration of event at different stages

| Sl. No. | Registration Period | Section/ Rule | Fees Payable | Authority |
|---|---|---|---|---|
| 1. | Upto 21 days of occurrence of event | Section 8/9 Rule 5 (3) | Nil | Concerned Registrar of Births and Deaths |
| 2 | 22nd day to 30th day | Section 8/9 Rule 9 (1) | Rs.2/- | -do- |
| 3. | After 30 days but within 1 year | Section 8/9 Rule 9 (2) | Rs. 5/- | Concerned Addl. District Registrar to permit and concerned Registrar to register. |
| 4. | After 1 year | Section 8/9 Rule 9 (3) | Rs. 10/- | Concerned Executive Magistrate to issue order and concerned Registrar to register. |

## Fees prescribed for other causes

| Sl. No. | Causes | Section /Rule | Fees payable | Authority |
|---|---|---|---|---|
| 1 | Insertion of name, if registration was done without name | | | |
| | a) Within 12 months of registration | Section 14 Rule 10(1) | Nil | Concerned Registrar of Births & Deaths on presentation of copy of the extract as provided under Rule 10(2) and issued under section 12 or 17. |
| | b) After 12 months but within 15 years of registration | Section 14 Rule 10(1)(a)/10(1)(b) | Rs. 5/- | -do- |
| 2 | Causing a search for registration of birth or death | | | |
| | a) Single entry in the first year | Sect. 17 Rule 13 (1) | Rs. 2/- | -do- |
| | b) Search for every additional year | -do- | Rs. 2/- | -do- |
| 3 | Granting | | | |
| | a) extract relating to each birth / death | -do- | Rs. 5/- | -do- |
| | b) non-availability certificate of B/D. | -do- | Rs. 2/- | -do- |

**Penalties**

| | | | | |
|---|---|---|---|---|
| 1.(a ) | Failing to give any information without reasonable cause | Section 23/ 1 (a) Rule 16 (2) | Rs. 50/- | Concerned Magistrate under code of criminal procedure 1898, (5 of 1898 ) |
| 1.(b ) | Providing false information to be inserted | Section 23/1 ( b) Rule 16 ( 2) | Rs. 50/- | -do- |
| 1.(c ) | Refuses to write his name and address | Section 23/ 1( c) Rule 16 ( 2) | Rs. 50/- | -do- |
| 2 | Registrar or sub-Registrar neglecting or refusing without reasonable cause to register event | Section 23 (2) Rule 16 (2) | Rs. 50/- | -do- |
| 3 | Medical practitioner neglecting or refusing to issue a certificate of cause of death | Section 23 (3) Rule 16 (2) | Rs. 50/- | -do- |
| 4 | Any person who without reasonable cause controversies any provision of the RBD Act for which no penalty has been provided. | Section 23 (4) Rule 16 (2) | Rs. 10/- | -do- |

**Power to Compound Offences Section 24 (1) & 24 (2):** Any Officer authorized by the Chief Registrar by a General or Special Order in his behalf may, either before or after the Institution of Criminal Proceedings under this Act, accept from the person who has committed or is reasonably suspected of having committed an offence under this Act, by way of composition of such offence a sum of money not exceeding fifty rupees and discharge on payment and no further proceeding shall be taken against him.

**Sanction for prosecution (Section 25):** No prosecution for an offence punishable under this Act shall be instituted except by an Officer, authorized by the Chief Registrar by general or special order in his behalf.

**Correction or cancellation of entry in the birth/death register ( Section 15, Rule 11) :** The Registrar of Births and Deaths are empowered to correct or cancel the entry in the respective register by a suitable entry/remarks in the margin without any alteration of the original entry under his signature in the margin and date of correction/cancellation, if the entries in the birth/death certificate and/or in the register maintained are found to be erroneous in the form or substance, or has been fraudulently or improperly made. The errors are corrected/cancel the entries subject to the rules framed by the State Government and if it proved to the satisfaction of the Registrar.

**Special Provision for Registration of Births and Deaths of Citizen Outside India (Section 20)**

**Section 20(1)** The information, pertaining to births and deaths of Indian citizens occurring outside India, is received by the Registrar General under the Rules relating to registration of such citizens at Indian Consulates made under the Citizenship Act, 1955 (57 of 1955), causes to be registered and every such registration is deemed to have been duly made under this Act.

**Section 20(2)** Any child born outside India and such information if not received as provided under sub-section (1) above, and if the parents of the child return to India with a view to settling therein, they may, at any time within 60 days of the date of arrival of the child in India, get the birth of the child registered under this Act in the same manner as if the child was born in India (without altering the place and date of birth of the child). The provisions of section 13 will apply for registration of birth beyond a period of 60 days aforesaid.

**Power to make Rules (Section 30)**

(1) State Government with the approval of the Central Government, by notification in the Official Gazette, can frame/make rules for the purposes of this Act.

(2) Make rules to provide for

(a) The forms of registers of births and deaths

(b) The period within which and the form and the manner in which information should be given to the Registrar under section 8

(c) The period within which and the manner in which births and deaths for notification under section 10(1).

(d) The person from whom and the form in which to obtain cause of death certificate.

(e) Particulars of extract to be given under section 12.

(f) To appoint authority to grant permission for registration of a birth or death under section 13(2).

(g) Various fees payable for registration made under section 13.

(h) Submission of report by the Chief Registrar under sub-section 4(4).

(i) Search of birth/death in the registers caused fees payable and grant of extracts from the registers.

(j) Forms in which and the intervals at which the returns are to be furnished and statistical reports published under section 19.

(k) Custody, production and transfer of registers and other records kept by Registrars (Rule 17).

1) Birth/ Death/still birth Register being of permanent importance not to be destroyed.
2) Court orders/orders of specified authorities granting permission for delayed registration being integral part of register not to be destroyed.
3) Cause of death certificate should be retained for a period of at least 5 years.
4) Birth/Death/Still birth registers should be retained by Registrar in his office for a period of 12 months after the end of calendar year and then transfer for safe custody.

(l) Correction of errors and the cancellation of entries in the register of births and deaths.

(m) Any other matter to be or that may have been prescribed.

(n) Every Rule made under this Act is to be kept before the State Legislature immediately after it is made.

**Repeal and saving (Section 31):** Any law in force that relates to the matters covered under this Act, stands repealed from coming into force of this Act, subject to the provision of Section 29, in any State or part thereof.

**Power to remove difficulty (Section 32):** In case any difficulty arises in application/ performance of provision of this Act, the State Government with the approval of Central Government by an order can make provisions for removal of such difficulty. Provided that no orders be made under this section in relation to any area in the State after expiry of two years from the date of coming in to force of this Act in that area.

**Other provisions**:

**Section 11**: Informant giving any information that is required under this Act shall sign/write his/her name/address or put thumb mark if cannot write.

**Section 12**: All the extracts given under this Section after completion of registration are free of charge under Section 8 or 9 and signed by the Registrar (Rule 8).

**Section 18:** District Registrar to specify the authority to inspect the registration unit and examine the register kept therein.

**Section 21:** Registrar is empowered to

require any person to furnish any information orally or in writing, in connection with birth or death in the locality within which such person resides.

**Section 22**: Central Government, if necessary, directs any State Government accordingly to carry out any provision of this Act.

**Section 26**: Registrars and Sub-Registrar acting in pursuance of the provision of this Act are deemed to be public servants (Section 21 of Indian Penal Code).

**Section 27**: By notification in Official Gazette, State Government may direct such Officer or Authority subordinate to the State Government as specified by, to exercise any power under this Act ( except making rules).

**Section 28:** (1) No suit, prosecution/legal proceedings against the Government, Registrar General, Registrar or any person exercising any power under this Act shall lie for anything done in good faith ( 2) As also for any damage caused or likely to be caused by anything done in good faith.

**Note** : For details and exact interpretation of the provision of the RBD Act, 1969 and Rules framed by State Government, those interested may refer the appropriate Act book i.e. " The Registration of Births and Deaths Act, 1969 "and "the Goa Registration of Births and Deaths Rules " as amended from time to time.